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UCI law student among DACA immigrants suing Trump administration

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Six immigrants brought to the United States as children who became teachers, graduate students and a lawyer sued the Trump administration Monday over its decision to end a program shielding them from deportation.

The lawsuit filed in federal court in San Francisco alleges the move violated the constitutional rights of immigrants who lack legal status and provided information about themselves to the U.S. government so they could participate in the program.

"The consequences are potentially catastrophic," said Jesse Gabriel, a lawyer for the plaintiffs. "These people can very powerfully and very clearly communicate the extent to which they organized their lives around this program."

The lawsuit joins others filed over President Donald Trump's decision to end the Deferred Action for Childhood Arrivals program, which has allowed nearly 800,000 immigrants to obtain work permits and deportation protection since 2012.

More than a dozen states from Maine to California have sued over the administration's decision to phase out the program, alleging similar constitutional violations. So has the University of California system.

Gabriel said the impact of Trump's decision directly weighed on his clients' personal lives and decisions they made to advance their careers in this U.S.

One of the plaintiffs, Viridiana Chabolla Mendoza, 26, started at UCI Law School just five weeks ago.

She's taking part in the suit – an act she described as "scary" – to help those who could face deportation if the executive order is repealed.

"It's important to assure that we have rights that there should be due process in rescinding DACA, but also to put a face on the people most affected," said Mendoza, who came with her family from Mexico when she was 2 years old.

DACA was announced just before her senior year at Pomona College, where she worked at the school's volunteer center.

Since then, she's worked at Public Counsel, one of the offices bringing the lawsuit against DACA, helping with civil rights litigation.

More than a one-quarter of DACA beneficiaries are in California.

"I have friends who are teachers and have DACA. Taking them out would leave a lot of students without a teacher. It's not only about us," Mendoza added, referring to other professionals who might be forced to leave if DACA is rescinded. "It's about the communities that depend on us."

Dulce Garcia is a 34-year-old lawyer in San Diego who came to the United States from Mexico when she was four years old. She recently signed a lease for an office and hired employees because she believed she could stay and work in the U.S. under the program, Gabriel said.

"Now, the government is totally pulling out the rug from under her," Gabriel said.

Among the other plaintiffs are:

* Norma Ramirez, who was brought to the country when she was 5, is a doctoral candidate at Fuller Theological Seminary in Pasadena;

* Miriam Gonzalez Avila, who was brought to the U.S. at age 6 and is a teacher at Crown Preparatory Academy, a UCLA graduate and a master's degree candidate at Loyola Marymount University;

* Saul Jimenez Suarez, a Los Angeles special education teacher who was brought to the U.S. at age 1.

* Jirayut "New" Latthivongskorn, a fourth-year medical student at UC San Francisco's School of Medicine who is also earning a master of public health degree from the School of Public Health at Harvard University. His family brought him to the U.S. from Thailand when he was 9.

Trump's announcement on Sept. 5 came after 10 Republican attorneys general threatened to sue in an attempt to halt the program. Under Trump's plan, those already enrolled remain covered until their two-year work permits expire, and some renewals are being allowed. But there will be no new applications.

Department of Justice spokesman Devin O'Malley blamed the Obama administration for starting the program and said the agency will defend Trump's decision.

"It was the previous administration's arbitrary circumvention of Congress that got us to this point," he said. "The Department of Justice looks forward to defending this Administration's position and restoring respect for the rule of law."

Immigrant advocates praise the program for protecting immigrants who were raised and educated in the U.S. despite their lack of legal immigration papers. The program's opponents criticize it as too broad and said major changes to immigration laws need to go through Congress and cannot be enacted by the U.S. president alone.

Staff Writer Tomoya Shimura contributed to this report.

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